Article 14 Worksheet: Classification and Reasonableness

Section A: Facts and Questions

1. A state government passed a law completely banning the manufacture, sale, purchase, and consumption of liquor by the general public, in the interest of public health and temperance. However, the same law carved out two exceptions: soldiers and sailors could still consume foreign liquor in their military messes, canteens, warships, and troopships; and foreign tourists visiting the country were allowed to possess and use liquor if they obtained a special permit. Ordinary resident citizens got no such permit route and were completely barred.

Question: Is it a valid classification to exempt defence personnel (on account of their separate service conditions and functional needs aboard ships) and foreign visitors (on account of their transient status and different customs) from a law whose entire purpose is to promote temperance among the general population, even though allowing them to drink seems to work against that very purpose?

2. A rent-control law protected tenants from eviction and unfair rent hikes in all ”old” buildings. To encourage builders to construct more housing, the law said that any building constructed after a certain cut-off date would be permanently free from all rent-control restrictions, forever, with no time limit. Decades later, buildings that were ”new” on the cut-off date were now more than twenty-five years old, yet their landlords still enjoyed total freedom from rent control, while equally old buildings built just before the cut-off date remained regulated forever.

Question: The classification (pre-cutoff vs. post-cutoff buildings) made sense when the law was first passed, since it genuinely encouraged fresh construction. Given that decades have now passed and the ”newness” that justified the exemption no longer exists for these buildings, is it still valid to keep exempting them forever, with no time limit on the incentive?

3. A labour welfare law required ”establishments” to deposit unclaimed wages, bonuses, and gratuities with a government-run welfare fund for workers' benefit. The law defined ”establishment” to include all factories, plus businesses running tramways or motor-bus services, but it excluded any trade or business employing fewer than fifty people, and it excluded government establishments other than factories. A large factory challenged this, arguing there was no fair reason to include it while excluding smaller trading businesses and most government offices from the very same obligation.

Question: Is it valid for the law to apply only to larger establishments (fifty or more employees) and specific sectors like factories and public transport, leaving out smaller trade

businesses and most government bodies, on the reasoning that the legislature can tackle a widespread problem in phases, starting with the sectors where unpaid dues are the biggest administrative concern, rather than regulating everyone identically from day one?

4. A state land tax law imposed a single flat tax rate per acre on "all lands in the State," regardless of what kind of land it was. This meant a landowner with highly fertile, income-generating agricultural land paid the exact same tax per acre as a landowner whose land was unproductive forest generating barely any income. One landowner earned only a small annual income from roughly 25,000 acres of forest, yet faced a tax demand many times larger than his actual earnings. The law also let the government exempt "any land or class of lands" from the tax at its own discretion, without laying down any guidelines for how that discretion should be used.

Question: Is a flat, uniform tax rate applied identically to land of wildly different productivity and income-generating capacity a valid classification, or does treating genuinely unequal things (fertile land vs. barren forest) as if they were equal itself amount to a failure to classify properly? Separately, is an unguided discretionary power to exempt "any land," with no criteria specified, valid?

5. The government liberalised its pension formula, raising the ceiling and improving how pensions were calculated for retired government employees. However, it declared that this improved formula would apply only to employees who retired on or after a specific date. Employees who had retired even a day or two before that date, despite having rendered the exact same kind, quality, and length of government service, continued to receive their pension under the old, less generous formula for the rest of their lives.

Question: All these pensioners rendered comparable service to the same employer. Is drawing a line based purely on the date of retirement a valid way to decide who gets the improved pension benefit and who doesn't, when the object of the improvement was simply to give retired employees better financial security in old age?

6. An airline had two cabin-crew cadres: male flight pursers and female air hostesses. Air hostesses had to retire at 35, or earlier if they married within their first four years of service, or immediately upon their first pregnancy, whichever came first. Male flight pursers faced none of these conditions and could serve until 58. Additionally, an air hostess's service could be extended beyond the retirement conditions purely at the unguided discretion of the Managing Director, with no criteria written down anywhere for how that discretion should be exercised.

Question: Q6a: Is it valid to have two separate cadres (pursers and hostesses) with different service rules, given that they were recruited from different sources and had different historical service conditions? Q6b: Is a rule terminating an air hostess's job the moment she becomes pregnant for the first time a valid classification, on the theory that pregnancy affects her ability to do the job? Q6c: Is it valid to let one senior official decide, with no written standard at all, whose service gets extended and whose doesn't?

7. In a government engineering department, degree-holder and diploma-holder Assistant Engineers had for years formed a single, integrated cadre with equal pay and equal chances of promotion. The government then introduced new rules giving degree-holders a higher pay scale and making only degree-holders eligible for promotion to the senior post of Executive Engineer; diploma-holders, however senior or experienced, were no longer eligible for that

promotion at all.

Question: Even though degree-holders and diploma-holders had previously been merged into one single cadre doing the same day-to-day work, is it valid for the government to now split them again for promotion purposes, reasoning that a formal engineering degree involves deeper theoretical training that better equips a person for the greater technical and managerial responsibility of the senior post?

8. Faced with a serious problem of undisclosed "black money" in the economy, the government issued special bonds that could be bought using unaccounted wealth. Anyone who invested their undisclosed money in these bonds got immunity from being questioned about where that money came from, protection from tax and other proceedings over it, and certain tax exemptions on the returns. Honest taxpayers, who had already declared and paid tax on all their income, received no comparable benefit or immunity at all.

Question: Is it valid to give special immunities and tax benefits specifically to people holding undisclosed wealth, while giving nothing comparable to honest, fully tax-compliant citizens, where the government's stated aim was to pull black money into productive investment for the economy, or does this amount to rewarding tax evasion at the expense of honest taxpayers?

9. In a government department, clerks had to pass certain departmental tests before they could be promoted to a higher clerical grade. A rule allowed the government to temporarily exempt employees belonging to Scheduled Castes and Scheduled Tribes who were already in service from having to pass these tests, for a limited period. Pursuant to this, a batch of promotions was given largely to such exempted employees on the basis of seniority, ahead of another employee who did not belong to these communities and who had actually passed the required tests but was not promoted.

Question: Is it valid to temporarily exempt employees from historically disadvantaged and underrepresented communities from a qualifying test for promotion, even though this meant some employees who had not passed the test were promoted ahead of a general-category employee who had passed it, where the object was to secure adequate representation of these communities in public service?

10. A textile mill fell into serious financial and managerial trouble, threatening the supply of an essential commodity (cloth) to the public. After a special government inquiry into this one company's affairs, Parliament passed a law that named this single company specifically, took away its managing agents and directors, let the government appoint new directors, and curtailed the voting rights of its shareholders. No other company in the country, even ones facing similar financial difficulties, was touched by this law; it targeted this one company by name.

Question: A shareholder of this company argued that singling out one company by name for such drastic treatment, while leaving every other company (including similarly troubled ones) alone, was "hostile" discrimination against that one company's shareholders. Can a law that targets only a single named entity ever be a valid classification, given that a "class" normally means a group of more than one?

11. In the aftermath of communal riots, a state passed a law allowing the government to set up Special Courts to try certain offences using a faster procedure that dropped some ordinary safeguards, such as trial by jury and committal proceedings. The law did not specify which

offences, which areas, or which kind of cases would go to the Special Courts; it simply let the government, by its own notification, pick and choose any individual ”case” or ”offence” it wished to send to the Special Court, without laying down any guiding standard for how that choice was to be made.

Question: Is it valid to let the executive government freely select, case-by-case and person-by-person, which accused persons get tried by a faster, less protective procedure and which get the ordinary trial process, when the statute itself gives no criteria, policy, or standard for how that selection is to be made?

12. After the integration of several princely states into one new state, certain specific regions of the new state saw a serious ongoing wave of organised violent crime: armed gang robbery, dacoity, looting, and murder. The government issued an ordinance that itself specifically named the disturbed regions and specifically listed the serious violent offences (murder, dacoity, robbery, and related crimes) that would be tried by a Special Court using a faster procedure. A person convicted under this scheme argued that being tried by this special, faster procedure, instead of the ordinary courts available to accused persons elsewhere, was discriminatory.

Question: Here, unlike a bare power to handpick any case, the ordinance itself spelled out exactly which areas and which types of offences would attract the special procedure. Does building the criteria directly into the law, rather than leaving it to unguided executive choice, make this a valid classification even though it results in some accused persons being tried differently from others?

13. Under the ordinary law of evidence, confessions made to a police officer are generally not allowed to be used as proof in court, whether or not the person was in custody, unless made before a magistrate. However, one specific rule said that if a person was in police custody and, while there, gave information that led to the discovery of some fact (like a hidden weapon), that part of the statement which directly relates to the discovery could be proved in court, even though the same statement, if treated as a full confession, would otherwise be barred. This rule applied only to persons ”in custody”; a person not in custody who gave police a full voluntary confession was governed by ordinary rules instead.

Question: Is it valid to treat statements from a person in police custody differently (allowing only the discovery-related part, verified by the actual discovery of the object, to be used) compared to statements from a person not in custody (whose full voluntary confession could otherwise be used), on the reasoning that a person in custody faces a materially higher risk of police pressure or inducement to confess?

14. A state sales-tax law taxed the sale of one particular variety of tobacco (a premium, largely export-oriented, cigarette-grade variety) while completely exempting the sale of another, more common ”country” variety of tobacco used mainly for chewing and local bidi-making. Traders dealing in the taxed variety argued there was no fair reason to single out their product for tax while a competing product, also just ”tobacco,” went untaxed.

Question: Is it valid to tax one commercial variety of a product while exempting another variety of the very same broad category of product, where the two varieties are genuinely grown, cured, marketed, and used differently, one being a distinct, higher-value, export-oriented commodity and the other a locally consumed one?

15. When a district was transferred from one state into a newly formed neighbouring state as

part of a state-boundary reorganisation, a temporary tax provision fixed the ”previous year” for computing agricultural income tax in that transferred district as a stretch of seventeen months (rather than the usual twelve), with the tax rate calculated using an adjusted ”average annual income” formula. Taxpayers in the rest of the new state continued to use the standard twelve-month previous year. Taxpayers in the transferred district argued this produced a harsher result for them and was discriminatory.

Question: Is it valid, for a strictly temporary, one-time transitional period following a state boundary reorganisation, to compute the tax year and tax rate differently for taxpayers in the newly merged territory compared to taxpayers in the rest of the state, given the genuine administrative difficulty of reconciling two different accounting-year systems after the merger?

16. A criminal law made it an offence for a man to have sexual relations with another man's wife without that husband's consent, but it expressly said that the wife involved could not be punished, not even as an abettor of the offence, regardless of her role in it. A man prosecuted under this law argued that punishing only men while completely exempting women, even from secondary liability, was discriminatory on the ground of sex.

Question: Is a law that criminalises certain conduct only for men, while expressly and completely exempting women from any liability for the same conduct, a valid classification, given that special treatment favourable to women is separately and expressly permitted by the Constitution?

17. An excise law banned the employment of any woman, and any man under the age of 25, in any part of premises where liquor was consumed by the public, including bars, hotel restaurants, and room service. The stated purpose was to protect women (and young men) from the risks associated with such an environment. Trained hospitality professionals who happened to be women were completely barred from working in these roles, regardless of their individual skill, experience, or the actual safety conditions of a specific workplace.

Question: Is a blanket ban on employing women (or young men) in liquor-serving premises, framed as protective of their safety, a valid classification, or does it fail because the same safety concerns could be addressed through narrower measures (like workplace safety rules) without a total employment ban based purely on sex and age?

18. A college admitted students based on a written entrance test plus a personal interview. More than 15% of the total marks were allotted to the interview. In practice, each interview lasted only two to three minutes and consisted of formal questions about the candidate's parentage and residence, nothing that could meaningfully test merit or aptitude. As a result, some candidates who had scored well on the written test were kept out, while candidates with lower written scores got in because of unexplained interview marks.

Question: Even though every candidate went through the exact same admission process (written test plus interview), can allotting a very high weightage to an interview that is too brief and superficial to actually assess anything meaningful still be struck down as unfair, on the ground that the process itself was arbitrary and irrational in its effect, regardless of whether it created a ”classification” in the traditional sense?

19. A constitutional amendment allowed the state to reserve up to 10% of seats and posts for ”economically weaker sections” of citizens, but only for such economically weak citizens who did not already belong to Scheduled Castes, Scheduled Tribes, or Other Back-

ward Classes (all of whom already had their own separate reservation benefits). It was argued that since poverty exists in every community, excluding poor persons from these already-reserved communities from this new, purely economic quota was itself discriminatory against the poorest of the poor.

Question: Is it valid to create a new reservation category based purely on economic weakness, while excluding from it people who belong to communities that already benefit from a separate, older reservation scheme based on social and educational backwardness, treating "economically weak general category citizens" as a distinct class from "economically weak persons from already-reserved communities"?

20. A government order granted 27% reservation in central government jobs for socially and educationally "backward classes," identified substantially using caste as an indicator. Within this reserved category, the more socially and economically advanced members of these backward communities (the "creamy layer") were to be excluded from the benefit, so that reservation went only to the genuinely disadvantaged members of these communities. Critics argued that using caste at all, and then further sub-dividing the backward class itself, was not a rational way to identify genuine disadvantage, and that economic status alone should have been the test.

Question: Is it valid to use caste as an indicator (though not the sole test) of social and educational backwardness for reservation purposes, and to further exclude the relatively well-off members within that backward class from the reservation benefit, on the reasoning that this keeps the benefit targeted at those who are genuinely, and not just nominally, disadvantaged?

21. A person accused of a serious offence was a minor on the date the alleged offence was committed, but by the time he was actually produced before the court or the case was investigated, he had crossed the age that would normally qualify him as a "juvenile" under the law. One view held that his status as a juvenile (entitled to the more lenient, protective procedure for children in conflict with law) should be decided based on his age on the date he is produced before the authority; another view held it should be decided based on his age on the date the offence was actually committed.

Question: For deciding whether someone gets the benefit of the more protective juvenile-justice procedure, is it more consistent with treating similarly-placed young offenders equally to fix their status by their age on the date of the offence itself, rather than by the date of production before court, which can vary enormously depending on how quickly or slowly a case happens to move?